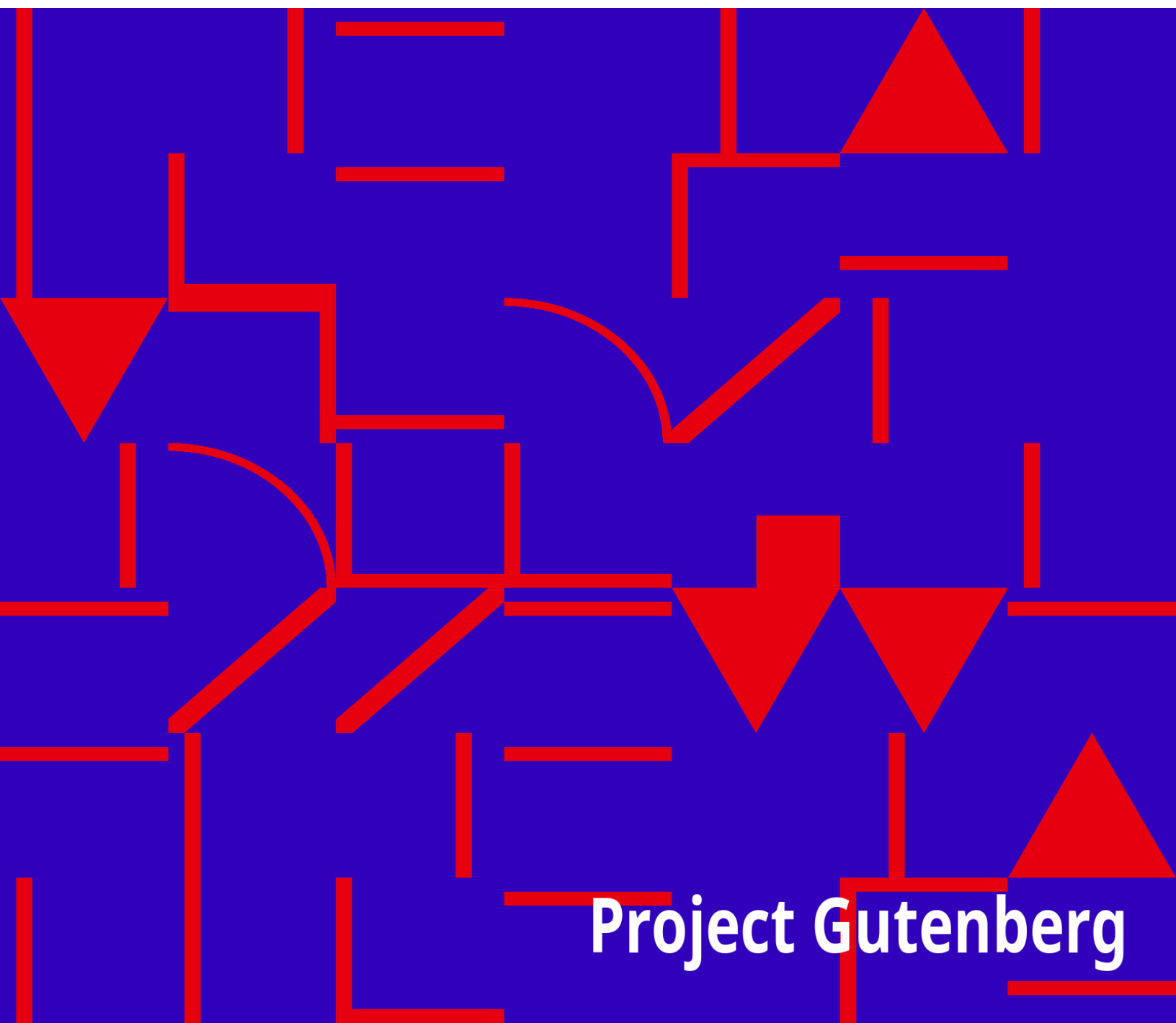


The Battle of Spring Hill, Tennessee

John K. Shellenberger



Project Gutenberg

The Battle of Spring Hill, Tennessee

John K. Shellenberger



Project Gutenberg

The Project Gutenberg eBook of The Battle of Spring Hill, Tennessee

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: The Battle of Spring Hill, Tennessee

Author: John K. Shellenberger

Release date: March 3, 2008 [eBook #24740]

Most recently updated: January 3, 2021

Language: English

Other information and formats: www.gutenberg.org/ebooks/24740

Credits: Produced by Greg Bergquist and the Online Distributed Proofreading Team at <https://www.pgdp.net> (This file was produced from images generously made available by The Internet Archive/American Libraries.)

***** START OF THE PROJECT GUTENBERG EBOOK THE BATTLE
OF SPRING HILL, TENNESSEE *****

Military Order

OF THE

Loyal Legion of the United States

COMMANDERY OF THE
STATE OF MISSOURI

The Battle of Spring Hill, Tennessee.

PREPARED BY
Companion Captain John K. Shellenberger

READ AFTER THE
STATED MEETING
HELD FEBRUARY
2d, 1907

PREFACE.

MORE than twenty-five years have passed since I began to collect the materials from which this pamphlet has been evolved. As a substantial basis, to begin with, I was an eye-witness of all the fighting in the vicinity of Spring Hill, that amounted to anything, from the time Forrest attacked the 64th Ohio on the skirmish line until Cleburne's Division recoiled from the fire of the battery posted at the village.

Since I began collecting I have neglected no opportunity to increase my stock of information by conversation, reading or correspondence. I have twice revisited the battlefield. I have the Government volume containing the official reports, all of which I have carefully studied. Among my correspondents, on the Union side, have been Generals Stanley, Wilson, Opdycke, Lane and Bradley, besides many others of lesser rank. I am as confident, from their letters, that my paper would have the approval of those named, who are now dead, as I am sure it has the approval of General Wilson, to whom a manuscript copy was submitted for criticism.

Among other Confederates, I wrote to General S.D. Lee, who referred me to Judge J.P. Young, of Memphis Tennessee, with the statement that he had exhausted the subject on the Confederate side. He was present at Spring Hill as a boy soldier in Forrest's cavalry, and for years has been engaged in writing a history of the Confederate Army of Tennessee, to which he has given an enormous amount of careful research. To him I am indebted for much of the most valuable part of my information concerning the Confederate troops. From the materials thus gathered I have tried to give, within the compass of a Loyal Legion paper, a clear and truthful account of the affair just as it happened. That opinions will differ, is shown by the fact that Judge Young holds General Brown responsible for the Confederate failure, while I believe that Cheatham, Stewart and Bate were all greater sinners than Brown. He was acting under the eye of Cheatham, who could easily have forced an attack by Brown's Division if he had been equal to the occasion.

By a curious coincidence General Lee was present as the guest of the Missouri Commandery at the meeting when the paper was read, and, in commenting on it, General Lee stated that I had told the truth about as it had occurred. The deductions made from the facts stated are my own.

THE BATTLE OF SPRING HILL.

IT may be fairly claimed that the success of General Sherman's famous March to the Sea hung on the issue of a minor battle fought at Spring Hill, in Middle Tennessee, the evening of November 29th, 1864, when Sherman and his army were hundreds of miles away in the heart of Georgia. It will be remembered that when Sherman started from Atlanta for Savannah his old antagonist, General Hood, was at Florence, Alabama, refitting his army to the limit of the waning resources of the Confederacy, for an aggressive campaign into Tennessee. If Hood's campaign had proved successful Sherman's unopposed march through Georgia would have been derided as a crazy freak, and, no doubt, the old charge of insanity would have been revived against him. By how narrow a margin Hood missed a brilliant success, a truthful account of the Spring Hill affair will disclose. Much has been written by interested generals of both sides, and by their partisan friends, to mislead as to the real situation. With no personal friendships or enmities to subserve, it is the intention of this paper to tell the truth without any regard to its effect on the reputation of any general, Federal or Confederate.

The Administration gave a reluctant consent to Sherman's plan on the condition that he would leave with General Thomas, commanding in Tennessee, a force strong enough to defeat Hood. On paper Thomas had plenty of men, but Sherman had taken his pick of infantry, cavalry, artillery and transportation, leaving the odds and ends with Thomas, consisting largely of post troops garrisoning towns; bridge guards in block-houses along the railroads; new regiments recruited by the payment of the big bounties that produced the infamous tribe of bounty jumpers; negro regiments never yet tested in battle; green drafted men assigned to some of the old, depleted regiments in such large numbers as to change their veteran character; dismounted cavalrymen sent back to get horses, and convalescents and furloughed men belonging to the army with Sherman who had come up too late to join their commands, organized into temporary companies and regiments.

Moreover, Thomas' forces were scattered from East Tennessee to Central Missouri, where General A.J. Smith, with two divisions of the Sixteenth corps, was marching for St. Louis to take steamboats to join Thomas at Nashville. The only force available for immediate field service consisted of the Fourth and the Twenty-third corps, the two weakest corps of Sherman's army, which he had sent back to Thomas. These two corps, temporarily commanded by General Schofield, were thrown well forward towards Florence to delay Hood long enough for Thomas to concentrate and organize from his widely scattered resources a force strong enough to give battle to Hood.

Passing over all prior operations we will take up the situation as it was the morning of November 29th. General Schofield had then well in hand on the north bank of Duck River, opposite Columbia, Tennessee, the divisions of Kimball, Wagner and Wood, composing the Fourth corps, and of Cox and Ruger, of the Twenty-third corps, Ruger's lacking one brigade on detached service. Across the river were two divisions of General S. D. Lee's corps of Hood's Army. The preceding evening Hood, himself, with the corps of Cheatham and Stewart, and Johnson's division of Lee's corps, had moved up the river five and one-half miles to Davis' ford, where he was laying his pontoons preparatory to crossing. His plan was to detain Schofield at the river by feinting with two divisions while he would lead seven divisions past the left flank and plant them across Schofield's line of retreat at Spring Hill, twelve miles north of Duck River. As Hood greatly outnumbered Schofield, his plan contemplated the destruction of Schofield's army.

During the evening of the 28th General Wilson, commanding our cavalry, had learned enough of Hood's movement to divine its purpose. In view of its vital importance, to insure a delivery, he sent a message in triplicate, each courier riding by a separate road, informing Schofield of what Hood was doing, and advising and urging him to get back to Spring Hill with all his army by 10 o'clock, the 29th. General Wilson has stated that his couriers all got through, the one riding by the shortest road reaching Schofield's headquarters at 3 a.m. of the 29th.

From the reports sent him by Wilson, General Thomas at Nashville had also correctly divined Hood's intention, and in a dispatch dated at 3:30 a.m., of the 29th—but by the neglect of the night operator not transmitted until 6

o'clock, when the day operator came on duty—he ordered Schofield to fall back to Franklin, leaving a sufficient force at Spring Hill to delay Hood until he was securely posted at Franklin.

I was commanding Company B, 64th Ohio Regiment, Bradley's brigade, Wagner's division. The brigade was under arms that morning by 4 o'clock, and had orders to be ready to march on a moment's notice. It is assumed that all the rest of the army received the same orders, and that this action was taken on account of the information brought by Wilson's courier at 3 o'clock. But nothing was done until 8 o'clock, when the movements began which disposed of our army as follows:

Wagner's division was sent to Spring Hill to guard the reserve artillery and the wagon trains, all ordered to Spring Hill, from any raid by Hood's cavalry. General Stanley, the corps commander, went with Wagner. Cox's division was posted along the river, and was engaged all day in skirmishing with the two divisions under Lee, which kept up a noisy demonstration of forcing a crossing. Ruger's two brigades were posted four miles north of Duck river, where the pike to Spring Hill crosses Rutherford's creek, to hold that crossing. The divisions of Kimball and Wood were aligned between Cox and Ruger, facing up the river towards Hood's crossing. At 9 o'clock Post's brigade, of Wood's division, was sent up the river to reconnoiter, and before 11 o'clock Post had reached a position where he could see Hood's column marching towards Spring Hill, and repeatedly reported that fact.

Nevertheless none of the four divisions near Duck river were started for Spring Hill until after 4 o'clock, when Schofield had heard from Stanley that Hood was attacking at Spring Hill.

After the campaign Schofield claimed that its success was due to his intimate knowledge of Hood's character, gained while they were classmates at West Point, which enabled him to foresee what Hood would do under any given conditions, and then make the best dispositions for defeating him. When, two months later, Schofield was in Washington, where they knew nothing about the details of the campaign, he so successfully impressed his claim on the Administration that he was given the same promotion with which General Sheridan had been rewarded for the victory at Winchester, jumping at one bound from the rank of captain to that of brigadier-general

in the regular army. But it is plain that after five hours' of deliberation that morning Schofield had reached a wrong conclusion as to Hood's intention, for if "Actions speak louder than words," there can be no question that Schofield's dispositions were made under the conviction that Hood would march down the river, after crossing, to clear the way for Lee to cross. And so deeply infatuated was he with this self-imposed delusion that, disregarding the order of Thomas and the advice of Wilson, he cherished it for about five hours after Post had reported that Hood was marching towards Spring Hill.

Wagner's advance, double-quicking through Spring Hill at noon, and deploying just beyond on a run, interposed barely in time to head off the advance of Hood's cavalry, Wagner arriving by the Columbia pike from the southwest and the cavalry by the Mount Carmel road from the east. General Forrest, commanding Hood's cavalry, had used his superior numbers so skillfully as to push back Wilson with our cavalry just north of Mount Carmel, which is five miles east of Spring Hill, before noon. Leaving one brigade to watch Wilson, Forrest then crossed over to Spring Hill with all the rest of his three divisions of cavalry. If Wagner had arrived a few minutes later he would have found Forrest in possession at Spring Hill.

General Cox, in his book on this campaign, claims that General Wilson committed a grave error in not crossing over to Spring Hill, in advance of Forrest, with all our cavalry. But in justice to Wilson it must be remembered that at Mount Carmel he acted under the belief that Schofield was following the advice he had given early that morning. If Schofield had been at Spring Hill at 10 o'clock, as Wilson had advised, with all his infantry, what reason could there have been for the cavalry joining him there?

When Bradley's brigade, the rear of Wagner's column, was nearing Spring Hill some of the cavalry approached the pike through the fields to reconnoiter, and the 64th Ohio was sent to drive them away. With the right wing deployed as skirmishers and the left wing in reserve, the regiment advanced steadily, driving before it the cavalry, without replying to the harmless long-range fire they kept up with their carbines, but always galloping away before we could get within effective range. About a mile east of the pike we crossed the Rally Hill road. This was the road by which Hood's infantry column approached. It there runs north nearly parallel with

the pike to a point 500 yards east of Spring Hill, where it turns west to enter the village. Leaving one of the reserve companies to watch the road, the rest of the regiment kept on in pursuit of the cavalry until our skirmishers were abreast of the Caldwell house, about 800 yards east of the road, when a halt was called. A few minutes later, at 2:30 o'clock, the left of our skirmish line, north of the Caldwell house, was attacked by a line of battle in front while the cavalry worked around our left flank. At the time we believed the battle line to be a part of Hood's infantry, and in a letter from General Bradley he states that it caused great consternation at headquarters in Spring Hill when Major Coulter, of the 64th, came galloping back with the information that the regiment was fighting with infantry. But investigation has disclosed that the battle line was composed of mounted infantry belonging to Forrest's command. They were armed with Enfield rifles, and always fought on foot like ordinary infantry, using their horses for traveling rapidly from place to place.

The four reserve companies were thrown in on a run at the point of contact, but our line was soon forced to fall back by the cavalry turning our left flank, where they cut off and captured three of our skirmishers. One of the three was badly wounded that evening in trying to escape, a bullet entering from behind and passing through his mouth in a way to knock out nearly one-half of all his teeth. We found him in a hospital at Spring Hill when passing through in pursuit of Hood's army after the victory at Nashville. In relating his experience he stated that when they were captured they were taken before some general, name unknown to him, who questioned them closely as to what force was holding Spring Hill. The general was probably Forrest, for he was personally directing the attack on the 64th, but may have been Hood himself, for he was on the Rally Hill road, less than a mile away, soon after the men were captured. They all declared that they knew the Fourth corps was at Spring Hill, and they believed all the rest of the army. Their declaration must have carried greater weight on account of their own faith in what they were telling, for at that time the whole regiment believed that all the rest of the army had followed to Spring Hill close on the heels of Wagner's division.

Eventually the 64th was driven back across the Rally Hill road, where a last stand was made in a large woods covering a broad ridge abutting on the road about three-fourths of a mile southeast of Spring Hill. While in these

woods, occurred a bit of exciting personal experience. A bullet, coming from the right, passed through my overcoat, buttoned up to my chin, in a way to take along the top button of my blouse underneath the coat. That big brass button struck me a stinging blow on the point of the left collar-bone, and, clasping both hands to the spot, I commenced feeling for the hole with my finger tips, fully convinced that a bullet coming from the front had gone through me there and had inflicted a serious and possibly a mortal wound. It was not until I had opened the coat for a closer investigation that I found I was worse scared than hurt. Some of the enemy had secured a position on our right flank, where they opened an enfilading fire, and it was one of their bullets that had hit me. To get out of that fire the regiment fell back towards the interior of the woods, where it was so close to our main line that it was called in.

It was then about 3:30 o'clock, and by that time the situation of our army had become so critical that nothing short of the grossest blundering on the part of the enemy could save it from a great disaster, and there was a fine possibility for destroying it.

Wagner's division had so much property to protect that it was stretched out on a line extending from the railway station, nearly a mile northwest of Spring Hill, where two trains of cars were standing on the track, around by the north, east and south, to the Columbia pike on the southwest. Behind this long line the village streets and the adjacent fields were crammed with nearly everything on wheels belonging to our army—ambulances, artillery carriages and army wagons to the number of about 800 vehicles. The nearest support was Ruger's two brigades, eight miles away, and it was about an hour later before Ruger had started for Spring Hill. Opdycke's brigade was covering the railway station and the Franklin pike on the north, and Lane's brigade the Mount Carmel road on the east. They had a connected line, but it was so long that much of it consisted of skirmishers only. They had in their front detachments of Forrest's cavalry feeling along their line for an opening to get at the trains. Bradley's brigade occupied an advanced, detached position, on the ridge to the southeast that has been mentioned, to cover the approach by the Rally Hill road. There was a gap of half a mile between Lane's right in front of Spring Hill and Bradley's left, out on the ridge. Bradley had in his immediate front the main body of Forrest's three divisions of cavalry and the three divisions of infantry

composing Cheatham's corps, while four more divisions of infantry were within easy supporting distance. In brief, ten of the twelve divisions, cavalry included, composing Hood's army, were in front of Spring Hill, and at 4 o'clock Hood was attacking with his infantry Wagner's lone division, guarding all our trains, while Schofield was still waiting for Hood at Duck river with four divisions from eight to twelve miles away. If Wagner's division had been wiped out, a very easy possibility for the overwhelming numbers confronting it while stretched out on a line about three miles long, without any breastworks, the rich prize of our ambulance train, six batteries of artillery, and all our wagons with their loads of supplies would have fallen into Hood's hands, and the retreat of the four divisions would have been squarely cut off, while having a short supply of artillery and no food or ammunition except what the men were carrying in their haversacks and cartridge boxes. The escape of our army from this deadly peril was largely due to the great skill with which General Stanley handled the situation at Spring Hill, but manifestly no amount of skill on the part of Stanley could have saved us, where the disadvantages were so great, if the enemy had improved with a very ordinary degree of vigor and intelligence the opportunity opened to them by Schofield's delusion as to Hood's intention. General Hood rode with the advance of his column until after it had crossed Rutherford's creek, two and one-half miles south of Spring Hill. It was then about 3 o'clock. There was no bridge, and his men had to wade the creek, which caused some delay. A short distance north of the crossing Hood met Forrest, and got his report of the situation at Spring Hill as he had developed it during the three hours preceding. He had met with resistance on so long a line that no doubt he greatly overestimated the force holding Spring Hill, and such an estimate would agree with the story told by the captured 64th men.

On the other hand, a courier had arrived with a report from Lee that Schofield's main body was still in his front at Duck river, and Lee's report was confirmed by the sounds of the heavy cannonading that had been coming from his direction. These reports disclosed that a part of Schofield's army was at Spring Hill and a part at Duck river, but they conflicted as to which position was held by his main body. In the uncertainty thus arising Hood decided, as his dispositions clearly show, that his first move must be to plant Cheatham's corps on the pike between those two parts.

Developments would then determine his next move. Cleburne's division was the first to cross the creek, and marching up the road until his advance was close to the woods where Forrest's men were fighting with the 64th Ohio, Cleburne halted and formed his battle line along the road facing west towards the Columbia pike. If the intention had been to make a direct attack, his line would have formed facing north towards our line in the woods, where its position had been developed by Forrest. The intention unquestionably was for Cleburne, avoiding any encounter with our line in the woods, first to cross over to the pike and then change direction and advance on Spring Hill astride the pike, while Bate's division, following Cleburne's, received orders as reported by Bate, to cross to the pike and then sweep down the pike towards Columbia. Hood himself gave the orders to Cleburne and Bate, and then established his headquarters at the Thompson farm house, near by, about 500 yards west of the Rally Hill road, and nearly two miles south of Spring Hill, where he remained till next morning. To save time Cleburne started for the pike as soon as he was ready, and Bate, then forming on Cleburne's left, followed as soon as his formation was completed.

While Cleburne and Bate were moving out, General Cheatham was at the crossing hurrying over Brown's division. When Brown got over he could support either Cleburne or Bate, as developments might dictate. Uncandid statements have been made that Cheatham's divisions were moved around in a disjointed manner and without any plan. There was not only a logical plan but a successful plan, if it had been carried out, in the orders given to Cheatham's divisions. The other four divisions were halted south of Rutherford's creek, and fronted into line facing west towards the Columbia pike. This proves that it was then Hood's belief that Schofield's main body was still at Duck river. If it should march up the pike and attack Bate, the four divisions would be on its flank. If it should attempt to reach the fortifications at Murfreesboro by cutting across the country south of Spring Hill the four divisions would be in a position to intercept it.

General Bradley had four regiments in line in the woods on the ridge, with the left towards the Rally Hill road and the right trending away towards the pike. They faced in a southeasterly direction. To cover more ground there were short gaps between the regiments. The 65th Ohio was the right regiment of the four, and to the right rear of the 65th was a gap of a couple

hundred yards extending out into cleared land, where the 42d Illinois was posted, refused as to the 65th and facing south to cover that flank. To the front, right and rear of the 42d was a broad expanse of rolling fields extending on the right to the pike, about 1,000 yards away, where two guns were posted to sweep the fields in front of the 42d with their fire. To the left of the 42d an extension of the woods ran out into the fields and concealed the 42d from Cleburne until he had advanced almost abreast of its position. When the 64th came off the skirmish line it was sent to the support of the 42d. The 36th Illinois, Opdycke's only reserve, was hurried across on double-quick from the other side of Spring Hill to support the two guns at the pike. As many guns of the reserve artillery as could be utilized were placed in battery around the southeasterly skirt of the village, looking towards Bradley's position. Bradley's men very hastily had constructed weak barricades of rails or anything else they could lay their hands on. The 42d had such protection as was afforded by a rail fence.

Shortly before 4 o'clock, having completed his formation, Cleburne started to march across to the pike. His division consisted of four brigades, but one was on detached duty, and he had three in line—Lowrey's on his right, then Govan's, then Granbury's. First crossing a field in his front, Lowrey entered the extension of the woods that has been mentioned, and on emerging on the other side his right came in view within easy range of the 42d, and that regiment opened an enfilading fire, Lowrey's line being then almost perpendicular to the line of the 42d. It was this accident of Lowrey's right passing within range of the 42d that led to the failure of Hood's plan, which, up to that minute, had been a great success. When the 42d opened fire the two guns at the pike also opened, their fire crossing that of the 42d, and the 64th, running forward and intermingling ranks with the 42d, poured in their fire. When our fire had thus developed our position, out in those wide fields they could see just what we had. They pulled down the rims of their old hats over their eyes, bent their heads to the storm of missiles pouring upon them, changed direction to their right on double-quick in a manner that excited our admiration, and a little later a long line came sweeping through the wide gap between the right of the 42d and the pike, and swinging in towards our rear. Our line stood firm, holding back the enemy in front until the flank movement had progressed so far as to make it a question of legs to escape capture when the regimental commanders gave the reluctant order to

fall back. The contact was then so close that as the men on our right were running past the line closing in on them they were called on with loud oaths, charging them with a Yankee canine descent, to halt and surrender; and, not heeding the call, some of them were shot down with the muzzles of the muskets almost touching their bodies. By the recession of the two regiments on the flank the rear of the four regiments in the woods became exposed. They were attacked at the same time by Forrest in front, and by Cleburne on their right and rear, and were speedily dislodged. The attack was pressed with so much vigor that in a few minutes after the 42d had opened fire Bradley's entire brigade was in rapid retreat towards Spring Hill, with Cleburne in close pursuit, and pouring in a hot fire. In falling back we had to cross the valley of a small stream, and I never think of our strenuous exertions to get out of a destructive cross-fire, while running down the easy slope leading to the stream, without recalling the story of the officer who called to a soldier making the best time he could to get out of a hot fire: "Stop, my man! What are you running for?"

"Because I have no wings to fly with," called back the soldier over his shoulder while increasing his efforts to make better time.

As we descended into the valley we uncovered our pursuers to the fire of the battery at the village, which opened with shrapnel shells, firing over our heads. General Stanley, who was in the battery, reported that not less than eight guns opened fire. As soon as Cleburne encountered that fire he hastily drew back over the ridge, out of sight. All pursuit with its accompanying direct and cross-fire having thus ceased, Bradley's men stopped running and walked on back to the vicinity of the battery where a new line was formed without trouble or confusion. When coming down the slope towards the stream Major Coulter, whose horse had been killed, was running a few feet in front of me, and I was just speculating whether my short legs could keep up with his long ones, when he called back over his shoulder: "Rally at this fence," meaning a rail fence we were approaching. I had a poor opinion of the fence as a place to attempt a rally, for we would still be exposed to a cross-fire, but wishing to obey orders I made for the strongest looking fence corner in my front, and, jumping over and stopping behind it, looked around to see if any concerted effort would be made to reform behind the fence. In my brief halt there I had some opportunity to observe the effect of our artillery fire on the enemy. I saw by the smoke where a number of our shells

exploded, and they all seemed too high in the air and too far to the rear, for I could not see any men knocked down by them. No doubt the fear of killing some of our own men caused our gunners to aim high, and it is probable that the noise made by so many guns and exploding shells had more to do with stopping the enemy than the execution that was done. Their after-actions showed that they believed Bradley's brigade to have been an outpost; that our main line was where the battery was posted, and that so much artillery must have a correspondingly strong infantry support.

General Bradley reported a loss of 198 men in his brigade, nearly all of it falling on the three regiments on the exposed flank, the other three regiments falling back with light loss because their position had become untenable. He was disabled with a wound, and Colonel Conrad, of the 15th Missouri, then assumed command of the brigade. By the casualties in the 65th Ohio the command of that regiment devolved upon the adjutant, Brewer Smith, a boy only 19 years old, and possibly the youngest officer to succeed to the command of a regiment throughout the war.

A regiment of the 23d corps which had come to Spring Hill as a train guard, and was placed in support of the battery at the village, has persistently claimed that the salvation of our army was due to the heroic stand it made after all of Wagner's division had run away. In a historical sketch of the regiment occurs this statement:

"At Spring Hill the regiment had another opportunity to show its pluck. A division that had been sent forward in charge of the trains was drawn up to resist any attack the rebels might make while the regiment, being with the headquarters train, was ordered to support a battery so placed as to sweep an open field in front of the troops. The enemy, emerging from the woods, marched steadily up to the National lines, when the entire division broke and ran." That is pretty strong language in view of the battle record of Wagner's division, for of the four brigades out of all the brigades serving in all the Western armies, given prominent mention by Colonel Fox in his book on regimental losses as famous fighting brigades, two, Opdycke's and Bradley's, belonged to Wagner's division, to say nothing of the very awkward fact that the brigades of Opdycke and Lane were on the other side of Spring Hill, out of sight of Cleburne's attack, but it is seriously so stated—"the entire division broke and ran, leaving the regiment and the battery to

resist the attack. Fixing bayonets the men awaited the onset. As soon as the enemy came within range they poured a well-directed fire into their ranks which, being seconded by the battery, caused them to waver. Portions of the retreating division having rallied, the rebels were compelled to betake themselves to the woods."

And in a paper on this campaign by a captain of the regiment, he relates how the officers of the regiment tried to stop the flying troops, and taunted their officers with the bad example they were setting their men; how the regiment opened a rapid, withering fire from a little parapet of cartridges which the officers, breaking open boxes of ammunition, had built in front of the men, and how their fire proved so destructive at that close range that it stopped Cheatham's men who then fell back and commenced building breastworks. In calling them Cheatham's men, did the captain wish to insinuate that Cheatham's whole corps was charging on the regiment? He uses the words "withering," "destructive," and "that close range," in a way to raise the inference that the contact was very close. The actual distance was shrapnel-shell range, for the battery stopped Cleburne with those missiles before he had crossed the little stream more than 1,000 yards away, so that instead of a cool regiment of exceptional staying qualities delivering a destructive fire at very close range, as pictured by the captain, the truth discloses a highly excited, not to say a badly scared regiment, wasting ammunition at too long range to do any damage. That this was the truth is proved by the very significant fact, not deemed worthy of mention in either of the accounts quoted, that the regiment did not lose a single man killed or wounded; not one, and it was not protected by breastworks. With impressive mystery the captain describes the regiment as what was left of it after the way it had been cut up in the Atlantic campaign, with the same artful vagueness used in the matter of the range, seeking to create the inference that the battle losses of the regiment had been very extraordinary. Again, to be specific, the regiment lost in its three years' term of service two officers and thirty-seven men killed or died of wounds, less than one-third the average loss of the six regiments composing Bradley's brigade, and it stands 109th among the infantry regiments of its State in the number of its battle losses, or, excepting six regiments that spent most of their time in garrison duty, at the bottom of the list of all three years' regiments sent from the State. It would appear that the 103d Ohio had become pretty well

imbued with the spirit characteristic of the headquarters with which it was associated, to claim credit in an inverse ratio to services rendered.

When Cleburne changed direction his left swung in so close to the pike that the two guns and the 36th Illinois were driven away and Cleburne could then have extended his left across the pike without meeting with any further opposition.

Lowrey and Govan made the change in line of battle while Granbury faced to the right and followed their movement in column of fours. Afterwards Granbury about faced, and moving back some distance in column, then fronted into line and advanced to a farm fence paralleling the pike at a distance variously stated at from 80 to 100 yards. His line there halted and laid down behind the fence. Cleburne and Granbury were both killed next day, and it is not known why Granbury did not go on and take possession of the pike. The brigades of Lowrey and Govan had become so badly mixed up in the pursuit of Bradley, and in the recoil from the fire of the battery, that their line had to be reformed. When this was accomplished the intrepid Cleburne was about to resume his attack towards Spring Hill when he was stopped by an order from Cheatham, who had brought up Brown's division on Cleburne's right, and had also sent a staff officer to recall Bate with an order for him to close up and connect with Cleburne's left. This proves that developments, probably the fire of so many guns opening on Cleburne, had convinced Cheatham that the force holding Spring Hill was strong enough to demand the attention of his entire corps. His intention was for Brown to lead in an attack, Cleburne to follow Brown, and Bate, when he got up, to follow Cleburne. But on getting into position Brown reported to Cheatham that he was out-flanked several hundred yards on his right, and that it would lead to inevitable disaster for him to attack. The 97th Ohio, of Lane's brigade, was to the left of the battery, in front of Spring Hill, with the left of the 97th extending towards Mount Carmel road. The 100th Illinois was on the other side of the road, several hundred yards in advance of the 97th Ohio, and the two regiments were connected by a part of the 40th Indiana deployed as skirmishers. That was the force that paralyzed the action of Brown's veteran division. Cheatham then directed Brown to refuse his right brigade to protect his flank, and to attack with the rest of his division, but Brown, still hesitating, Cheatham then concluded that the force holding Spring Hill was too strong for his corps alone to attack, for he reported to

Hood that the line in his front was too long for him, and that Stewart's corps must first come up and form on his right. But before Stewart could get up, night had come.

It is notable that Brown's only excuse for not attacking was that he was out-flanked on his right, for the claim has been made that Hood arrived in front of Spring Hill too late in the day to accomplish anything, and Schofield himself has stated that his action was based on a cool calculation, made from his intimate knowledge of Hood's character, who had been deficient in mathematics as a cadet, and could make no accurate computation of the time required to overcome difficulties; that Hood, marching by a muddy country road, would arrive in front of Spring Hill tired, sleepy, and so much later than he had calculated, that he would defer all action until next morning. Between "shortly after daylight," when he started from Duck river, and 3 o'clock, when he had crossed Rutherford's creek. Hood had ridden about ten miles—too short a distance to tire him out, and too early in the day to become sleepy. He then sent forward Cheatham's corps with plenty of time before night came for Cheatham to have made a secure lodgement on the pike, or to have run over Wagner's division, the way it was strung out, if Cleburne's attack had been promptly followed up with anything like the vigor with which he had jumped on Bradley's brigade. Hood's arrival in front of Spring Hill that afternoon was clearly a contingency unlooked for by Schofield, for it caught our army in a situation to leave no reasonable hope of escape without dire disaster, and Schofield himself, as will appear, was thoroughly frightened by the situation. That his after-version of the saving merit of his cool calculation was fully accepted by the Administration is proved by the promotion he was given, when, in fact, his bad miscalculation was responsible for getting the army into a trap from which it escaped through the failure of the enemy to shut the door. Of the miracle of that escape much remains to be told. When Wagner was coming to Spring Hill the 26th Ohio was detached from the column to guard a country road entering the pike more than a mile southwest of Spring Hill. Captain Kelly, of the 26th, informed me that the regiment was driven off that evening by a line of battle so long as to extend far beyond either flank of the 26th. That was Bate's division, and after driving off the 26th there was nothing whatever to prevent Bate from sweeping down the pike towards Columbia. If he had diligently obeyed that order he would have

progressed so far before Cheatham's recall order reached him that he would have met Ruger coming to Spring Hill, and then the cat would have been out of the bag. Bate declined to obey Cheatham's first order because it conflicted with the order direct from Hood, under which he was acting, and Cheatham's order had to be repeated. When the second order reached Bate he was still loitering where he had encountered the 26th Ohio. He had wasted more than an hour of precious time in doing nothing, for he had not only disobeyed Hood's order to sweep down the pike, but he had not even made a lodgement on the pike. It was then about 6:30 o'clock, after dark, and Ruger's advance was just coming along. First leaving orders for the other divisions to follow after dark, about 4:30 o'clock, Schofield had started with Ruger to reinforce Stanley. Ruger skirmished with Bate at the place and time indicated, but as Bate was off to the east side, instead of astride the pike, where, by Hood's order he should have been, Ruger had no difficulty in pushing past Bate. Granbury's brigade was still lying behind the fence, close to the pike, and after passing Bate, Ruger had to run the gantlet of Granbury's line. Granbury had been notified that Bate was coming from the left, and hearing Ruger marching along the pike in the darkness, he mistook him for Bate, so that Schofield himself, with Ruger, rode along right under the muzzles of the muskets of Granbury's line, in blissful ignorance of the danger they were passing. Captain English, Granbury's assistant adjutant-general, advanced towards the pike to investigate, but was captured by the flankers covering the march of Ruger's column, belonging to the 23d Michigan. Elias Bartlett of the 36th Illinois, was on picket on the pike at the bridge across the creek a half mile south of Spring Hill, and he informed me that when Schofield came to his post he began eagerly to inquire what had happened, saying that he had feared everything at Spring Hill had been captured; that while they were talking, a Confederate picket, near enough to hear the sound of their voices, fired on them, and Schofield then rode on. A little later Bate came up through the fields, Granbury fell back from the fence and Cleburne and Bate then connected and adjusted a new line with Bate's left brigade refused so as to face the pike and all the rest of their line running across the country away from the pike.

Bate had utterly failed to grasp the significance of Ruger's passage, claiming that his flank was in danger, and his representations to that effect

were so urgent that Johnson's division was brought up between 9 and 10 o'clock and posted on Bate's left, Johnson's line and the line of Bate's refused brigade paralleling the pike at a distance of not more than 150 yards. Many contradictory statements have been made relative to the distance of that part of the Confederate line from the pike. The owner of the land pointed out to me a small plantation graveyard as being just inside their line that night. He said that the position of their line was marked, after they had gone in the morning, by the rail barricades they had built, and by the remains of their bivouac fires, and he very positively asserted that no part of their line, facing the pike, was distant more than 150 yards from the pike. All the intervening space was cleared land. When the divisions of Cox, Wood and Kimball came up from Duck river later in the night, they marched along unmolested within that easy range of the Confederate line, and could plainly see the men around the bivouac fires. A staff officer was stationed on the pike beyond Johnson's left, where the fires first came into view, to caution the troops as they came up to march by the fires as silently as possible. Captain Bestow, of General Wood's staff, has related that when the officer told Wood, riding at the head of his division, that the long line of fires he could see paralleling the pike so closely on the right was the bivouac fires of the enemy, the veteran Wood was so astounded that he exclaimed: "In God's name, no!" When they came abreast of the fires one of Wood's orderlies, believing it to be impossible they could be the enemy, started to ride over to one of the fires to light his pipe, but had gone only a short distance when he was fired on, and came galloping back. A colonel of Johnson's division has stated that he held his regiment in line, momentarily expecting an order to open fire, until his men, one after another, overcome with fatigue, had all dropped to the ground to go to sleep. Some of Johnson's men, on their own responsibility, went out on the pike between the passage of the different divisions, to capture stragglers for the sake of getting the contents of their haversacks. They were the men who made it unsafe, as reported by General Stanley, for a staff officer or an orderly to ride along the pike when a column of troops was not passing.

General Hood had gone to bed in Thompson's house when he was informed that troops were marching along the pike. Without getting out of bed he directed Colonel Mason, his chief of staff, to send an order to Cheatham to advance on the pike and attack, but Mason admitted the next day, as stated

by Governor Harris, of Tennessee, who was serving as a volunteer aide on Hood's staff, that he never sent the order. This strange neglect of the part of his own chief of staff affords a fitting climax to all the rest of the imbecility that contributed to Hood's failure after he had personally led the main body of his army to a position where by all ordinary chances success should have been certain.

There is a bit of Stanley's report that gives a clear glimpse of the situation as Schofield and Stanley believed it to be after they had met that night: "General Schofield arrived from Columbia at 7 o'clock in the evening with Ruger's division. He found the enemy on the pike and had quite a skirmish in driving them off. My pickets had reported seeing rebel columns passing, east of our position, as if to get possession of the hills at Thompson's Station, and the anxious question arose whether we could force our way through to Franklin. It was determined to attempt this, and General Schofield pushed on with Ruger's division to ascertain the condition of affairs."

Another vivid glimpse is afforded in the statement of O.J. Hack, a conductor on the railroad, who was also interested in a store at Columbia. He came down the road that day on the last train southbound, having in charge some goods for the store, and at the Spring Hill station met the last train northbound, and from the trainmen learned that the army was retreating. The two trains stood at the station that afternoon. Some time after dark, being anxious to save his goods, Hack went over to Spring Hill in quest of a guard to run the trains back to Franklin. On inquiring for headquarters he was directed to a large brick house where he found Schofield and Stanley together. Schofield, recently arrived from Duck river, had just been getting Stanley's account of the situation, and Hack said that Schofield was in a condition of great agitation, "walking the floor and wringing his hands." When Hack had told what he wanted, Schofield sharply replied that the enemy had possession of the road north of Spring Hill, and the trains could not move. The report of Stanley and the statement of Hack concur in showing that it was then Schofield's belief that Hood had possession of the Franklin pike; that the army was caught in a trap; that the only way out was the desperate expedient of forcing a passage by a night attack, and, failing in that, he must fight a battle next day under so many disadvantages that ruinous defeat, with the probable loss of the army, was

staring him in the face. It would be interesting to know what Schofield then thought about his intimate knowledge of Hood's character, and his cool calculation based thereon, for which he afterwards so unblushingly claimed so much credit.

The two trains stood at the station until daylight was beginning to dawn when a detail of men came and began to build fires to burn the cars, but the detail was driven away, and the fires were extinguished before much damage was done, by the advance of the enemy. The two trains thus captured afforded the transportation to which Hood alluded in a letter to Richmond, written when he was in front of Nashville, wherein he stated that he had captured enough transportation to make use of the railroad in bringing up supplies. But Schofield ignored the loss of the two trains, for, in his official report, he explicitly states that with the exception of a few wagons, and of a few cattle that were stampeded, he arrived at Franklin without any loss.

When Schofield "pushed on with Ruger's division to ascertain the condition of affairs," on his arrival at Thompson's Station, three miles north of Spring Hill, he found camp fires still burning, but the brigade of cavalry that had been in possession there, withdrew without making any resistance. This very considerate action on the part of the cavalry was another of those lucky fatalities that so notably contributed to the escape of our army when such special fatalities were a vital necessity for its escape. After posting Ruger there to hold the cross roads Schofield returned to Spring Hill, where he arrived about midnight at the same time with the advance of Cox's division coming from Duck river. With this division he then hurried through to Franklin, picking up Ruger as he passed along, and thus saddling Stanley with all the risk of saving the artillery and the trains.

If they had been lost Stanley would have been the scapegoat, but with the same skill with which that afternoon he had bluffed off ten-twelfths of Hood's army with a single division, Stanley that night saved the artillery and the trains. At 3 o'clock in the morning, when only a part of the trains had pulled out, the long column on the pike was brought to a standstill by an attack some place in front. The situation was so critical that General Wood, who was then with Stanley, believing it would be impossible to save both troops and trains, advised that the trains be abandoned. But Stanley

persevered until the attack was beaten off and the column again in motion. The two trains of cars had to be abandoned because a bridge had been destroyed north of the station, and about forty wagons were lost in the attacks made by Forrest between Thompson's Station and Franklin. Everything else was saved.

And, by the way, Stanley was one of the many good soldiers who were overslaughed by the big promotion obtained by Schofield. Stanley outranked Schofield, both as a captain in the regular army and as a major-general of volunteers, but by assignment of the President, gained by his extraordinary ability in the arts of diplomacy instead of by fighting ability displayed on the battle field, Schofield was a department commander while Stanley was a corps commander, and it thus happened that Stanley was serving under his junior in rank.

Wagner's division was the last to leave Spring Hill. When night came Bradley's brigade began to intrench the line it was on, and kept at this work until nearly midnight when the men were called under arms, and spent all the remainder of that anxious, weary night on their feet. While standing in column we could hear to our left the rumble of the wheels while the artillery and the wagons were pulling out, and much of the time could be heard the dull tread of many feet and the clicking of accoutrements that told of the march of a column of troops along the pike, but there was no other sound—not even the shout of a teamster to his mules or the crack of a whip. All the surroundings were so impressive as to subdue the most boisterously profane men. In expressing their dissatisfaction with the situation they were always careful to mutter their curses in a tone so low as to be inaudible a short distance away, for, looking to our right, we could see the glow on the sky made by the bivouac fires of the enemy, and in some places could see the fires with a few men about them cooking something to eat, or otherwise engaged, while most of their men were lying on the ground asleep. Every minute of those anxious hours we were looking for them to awake to the opportunity that was slipping through their fingers and grab hold of it by advancing and opening fire on the congested mass of troops and trains that choked the pike. Occasionally our column would move on a short distance. Any orders that may have been given were spoken in a low tone at the head of the column. You would be apprised that the column was moving by the silent disappearance in the darkness of your file leader. You would hurry

after him, and taking, perhaps, not more than a dozen steps, would be brought to a sudden halt by running against him, immediately followed by the man in your rear bumping up against yourself. Then would follow an indefinite wait until the column would again move on a short distance. The wearing suspense of the long waiting, while standing on our feet; the exasperating halts following those false starts, when everybody was almost frantic with impatience to go on; the excessive physical fatigue, combined with the intense mental strain when already haggard from much loss of sleep during the three days and nights preceding, make that night memorable as by far the most trying in nearly four years of soldiering. It afforded unspeakable relief when, just as daylight was beginning to dawn, our column finally got away in rapid motion for Franklin, the enemy dogging our heels with their close pursuit.

The location of Hood's headquarters was central as to the position of his troops until nightfall, and was, therefore, a proper one. But he was too far away to get any personal knowledge as to what was going on at Spring Hill, and he had to rely on the reports of his subordinates who were in contact with our troops. The character of those reports is unmistakably indicated by the second move that Hood made. His first move, as has been shown, was based on the correct theory that a part of Schofield's army was at Spring Hill and a part at Duck river, and it contemplated thrusting in Cheatham's corps between those two parts. His second move, made after the fighting was all over, and he had received the reports of that fighting, was based on the theory that all of Schofield's army had reached Spring Hill, for, abandoning all purpose of cutting off any part south of Spring Hill, it contemplated seizing the pike north of Spring Hill and cutting off Schofield's retreat to Franklin.

Between sunset and dark, as stated by General Stewart, which would be about 5 o'clock at that season of the year, he received orders to cross Rutherford's creek with his corps, to pass to the right of Cheatham's corps, and to extend his right across the Franklin pike. After about five hours Stewart finally went into bivouac with his right more than a mile away from the Franklin pike. His explanations for his failure were the lack of a competent guide, the darkness of the night, and the fatigue of his men. To accomplish Hood's orders required a march of a little less than four miles by Stewart's head of column—about three miles by a direct country road

leading into the Mount Carmel road, and the remaining distance across the country lying between the Mount Carmel road and the Franklin pike. It would seem that a guide might have been found among the cavalry who had explored the country that afternoon in developing the position of our line between the Mount Carmel road and the railway station, west of the Franklin pike; or there were men in some of the Tennessee regiments whose homes were in that vicinity, who were thoroughly familiar with the ground. That no great difficulties were involved in the march is proved by the fact that Johnson's division made a similar march in about two hours, later in the night, to get into position on Bate's left. The night was as dark, the men were as tired, the distance was as great, and the way was as difficult for Johnson as for Stewart. In view of these plain facts it is a fair inference that Stewart made a very lukewarm effort to accomplish Hood's orders; that it was possible for him, by a display of no more energy than Johnson displayed, to have extended his right across the Franklin pike as early as 8 o'clock, and then when Schofield started north with Ruger's division about 9 o'clock, he would have found the way effectually barred.

The prime cause of Hood's failure was apparently the lack of confidence in his generalship on the part of so many of his subordinates. They had been dissatisfied with his appointment to the command of the army, and their dissatisfaction had been greatly increased by the failure of his attacks on Sherman's lines in front of Atlanta. With the poor opinion they held of Hood's ability it was not possible for them to give to any plan of his that whole-hearted, unquestioning support that gives the best guarantee of success. Simple as his plan was, they all failed to grasp the importance of getting possession of the pike and, Cleburne excepted, they all acted as if they were expecting a repetition of the disastrous experience that had followed the attacks on Sherman. The promptness with which Cleburne turned and rolled up Bradley's brigade when he was so unexpectedly assailed on his own flank, was the only energetic action on the part of any of them after they had crossed Rutherford's creek; and, no doubt, if Cleburne had not been halted by Cheatham's order, he would have gone on until he had reaped the full measure of success made so easily possible by the faulty situation of our army. But amid all the exciting occurrences of that eventful evening it is amazing that no inkling of that faulty situation seems ever to have entered the mind of any one of those veteran generals.

Hood made a mistake, as stated by himself, in not taking Bee's corps on the flank march instead of Cheatham's corps. He believed that with Bee in Cheatham's place he would have succeeded, and in view of the skill with which Lee executed the part assigned to him to hold Schofield at Duck river, it is more than probable he would have given at Spring Hill far better support than Cheatham gave. Hood led Cheatham within sight of an easy and brilliant success, and it was the hesitation displayed by Cheatham, Brown and Bate at the critical time, that defeated Hood's plan and saved Schofield's army. That their hesitation was not due to any lack of courage on their part, or on the part of the troops they commanded, was abundantly proved by the unsurpassed courage with which they assaulted at Franklin next day when it was everlastingly too late. If they had fairly utilized at Spring Hill one-tenth part of the courage that was thrown away on the breastworks of Franklin they would have changed the later current of the war with results too far reaching to be estimated.

The prime purpose of Schofield's campaign was to delay Hood. How well he succeeded in that purpose can be significantly stated in a single sentence: The evening of November 29th he was at Duck river, and the morning of December 1st he was at Nashville, more than forty miles away. Then followed the panicky feeling displayed by the Administration, and by General Grant, because General Thomas was not ready to attack Hood immediately on his appearance in front of Nashville. If Schofield's orders at Duck river had been to make no effort to delay Hood but to get inside the fortifications of Nashville with the least possible delay, he would not have covered the distance in so short a time without the spur of Hood's flank movement, and the celerity with which he ran out of the country was due to the scare he got at Spring Hill.

From Franklin next day he wired General Thomas at Nashville that he had come through, but that the least mistake on his part, or the fault of any subordinate, might have proved fatal, and he did not want to get into such a tight place again; that a worse position for an inferior force than the one at Franklin could hardly be found; that he had no doubt Forrest would be in his rear next day, or doing some worse mischief, and that he ought to fall back to Brentwood at once. In short, his Franklin dispatches, read by the light of Stanley's report and of Hack's statement, clearly show that his mind was still dominated by the fright of Spring Hill, and that he could feel no

security short of Brentwood, where he would be backed up too close to Nashville for Hood to have room to repeat that terrible flank movement. Not even the wrecking of Hood's army on the breastworks of Franklin that evening could reassure Schofield. He insisted on retreating to Nashville that night when thousands of the men were in such a condition from more than forty hours' of incessant marching, fortifying and fighting that they dozed on their feet while they were walking, and in spite of the manly protest of General Cox, who was so urgent in his efforts to persuade Schofield no more running was necessary, that he offered to pledge his head he could hold the position.

*** END OF THE PROJECT GUTENBERG EBOOK THE BATTLE OF
SPRING HILL, TENNESSEE ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.